



महाराष्ट्र MAHARASHTRA

2025

DW 674779



AMENDMENT TO AGREEMENT

This Amendment Agreement is made at Mumbai on 12th August 2025 and shall be effective from 01st September 2025

Between

BASF INDIA LIMITED, a Company incorporated and existing in accordance with the provisions of the Indian Companies Act, 1913 and having its corporate office at Unit no.10A, 10B & 10C (part), 10th floor "Godrej One", Pirojsha Nagar, Vikhroli East, Mumbai – 400079, hereinafter referred to as the "**The Company**" (which expression shall, unless repugnant to the context or meaning thereof, include its successors-in-interest and assigns).

And

ASCENDAS PANVEL FTWZ PRIVATE LIMITED a Private Limited company incorporated under The Companies Act 2013, with Corporate Identification Number (C.I.N.) U93000MH2010PTC199940 and having its registered office at Plot No. Kalwa K-14/2, 15, 37, TTC Industrial Area MIDC, Airoli, Thane – 400 708, Maharashtra herein after referred at as "Service Provider" which expression shall unless repugnant to the context and meaning thereof, be deemed to mean and include its successors and assigns of the Other Part.



Company and Service Provider are hereinafter severally referred to as "Party" and collectively as "Parties".

Whereas

1. The Company and the service provider have entered into a Clearing & Forwarding Agreement dated 20th March 2022 (the Principal Agreement) for including clearing, handling, forwarding, safe custody and warehousing of Products received at and dispatched from the Company's Warehouse premises at Sai Village, C/o. Ascendas Panvel FTWZ Pvt. LTD, Panvel FTWZ, Navi Mumbai, Raigad, Maharashtra, 410206
2. The Parties now agree to extend the term of the Principal Agreement from 1st September 2025 till 30th November 2025.

Schedule B of the Principal Agreement dated 20th March 2022 as per below format of Schedule B.

Schedule B of Charges payable per month:

FTWZ Panvel Commercials - Import from JNPT						
Sr. No.	Particulars			Unit Of Measurement	Tariff Rate in	
					20' Ft	40' Ft
I	Non - Storage Charges for Destuffed Cargo (Scenario - 1)					
a	Transportation PORT TO FTWZ (USD per FCL Container) Transportation not only includes pure Transportation, but a gamut of Regulatory and Operations Service, which inter alia includes Sealing of Containers at Port, Transhipment Permit (TP) linking process at JNPT, Bond and Bank Guarantee process at JNPT for transhipment of Containers, Weighment of Container, Taking Landing Certificate from Customs, FTWZ ; Submitting Landing Certificate at JNPT, Ensuring debit credit knock off in JNPT systems, Gate-In & Survey charge at FTWZ, Fuel & Energy Surcharge, Lift on/Lift off (LO-LO) charges for container at FTWZ container yard, Gate-Out & Survey charge, empty container repositioning to shipping line yard.			Per Container	231.53	286.65
	Handling Charges for Palletised Cargo - USD per MT					
	Inbound handling					
	Inbound Handling Labor Charges					0.970
c	Inbound Handling Dock Area Storage/Usage Charges			Per MT		1.786
	Outbound handling					
	Outbound Handling Labor Charges					0.970
	Outbound Handling Dock Area Storage/Usage Charges					1.786
d	Storage charges for Destuff Cargo					
	Palletized cargo (Pallet Dimension:1mx1.2mx1.5m)					
	Storage range					Storage Charges
	0-150 Pallets			per pallet per day		0.44
	151-300 Pallets			per pallet per day		0.39
	301-400 Pallets			per pallet per day		0.33
Sr No	Particulars	No Of Pallets				
1	Storage charges (Non Haz) of 15-25 Degree	100		Per Pallet per day		0.60
2	Handling Charges (Cold Chain product) Non			per MT		2.76
3	Handling Charges (Cold Chain product) Haz			per MT		3.58
II	Non - Storage charges for CY CY movement (Scenario -2)					
a	Transportation PORT TO FTWZ(USD per Container)			Per Container	170.89	203.96
b	Storage charges for CY CY movement					
	Container Ground Rent			Remarks	TEU	FEU
	Container Ground Rent per day		USD	Per Day/ Container	5.51	5.51

Legal Notes:-

DTA - Domestic Tariff Area

MTS - Metric Tonnes

ODC - Over Dimensional Cargo

CBM - Cubic Meter

FCL - Full Container Load

TEU - Twenty Feet Equivalent Unit

FEU - Forty Feet Equivalent Unit

LCL - Less than Container Load



Annexure: B**Other non-storage charges**

Sr. no.	Particulars	Currency	TEU	FEU
1	Container scanning	USD	35	50
2	LCL cargo/Air shipment - Gate in & Survey charges	USD	20	20
3	Container plug in & Monitoring charges for refer containers	USD	82	132
4	Overnight Parking charges (on approval of Operation In charge)	INR	1100	1100
5	Idle labour charges (per shift wise)	INR	1100	1320
6	Vehicle detention charges	INR	330	330
7	Intra SEZ transfer	USD	110	110

Value Added Services

Sr. No.	Particulars	Remark	Currency	Rate in INR
1	Lashing and securing cargo:	Per pallet	INR	1950
2	Choking of cargo	Per Vehicle	INR	1800
3	Sealing of Vehicle	Per Seal	INR	70 (Wire Seal)
			INR	30 (Bottle Seal)
4	Repalletization with CP-3 Pallet	Per pallet	INR	2200
4.1	Wrapping & Strapping	Per pallet	INR	450
4.2	Moving from one pallet to another	Per pallet	INR	200
4.3	New CP-3 Pallet	Per pallet	INR	2000
4.5	Used CP-3 Pallet	Per pallet	INR	1200
5	Repacking	Per Box	INR	20
6	Relabeling	Per Label	INR	Small label (6.5*6 and below)- Rs 3/-
		Per Label	INR	above 6.5*6 - Rs 5/-
7	Fumigation Charges for CP-3 Pallet (20 Pallets)	Per pallet	INR	1650

All other terms and conditions remain same as per Principal Agreement

NOW, THEREFORE, in consideration of the foregoing premises and the mutual covenants herein contained, the Parties hereto intend to amend the Principal Agreement as follows:



1. The clause A of the Principal Agreement shall be substituted with the below clause

This Agreement shall become effective from 01st September 2025 and shall continue to be in force for a period of Three months till 30th November 2025 unless determined earlier by either Party by giving Three months prior notice in writing to the other Party PROVIDED THAT, Company shall be at liberty to terminate this Agreement forthwith with immediate effect if Service Provider commits any breach of any of the terms and conditions herein below mentioned.

2. The Annexure - B as same as per above.
3. Except as specifically modified and amended herein, all of the terms, provisions, requirements and specifications contained in the Principal Agreement remain in full force and effect. Except as otherwise expressly provided herein, the parties do not intend to, and the execution of this Amendment shall not, in any manner impair the Principal Agreement, the purpose of this Amendment being simply to amend and ratify the Agreement, as hereby amended and ratified, and to confirm and carry forward the Agreement, as hereby amended, in full force and effect.
4. This Amendment shall be construed and governed by the laws of India.

IN WITNESS WHEREOF, BASF and Service Provider have executed and delivered this Amendment effective as on the date first mentioned above.

SIGNED AND DELIVERED
For BASF India Limited



Authorized Signatories
(Mr. Mehul Joshi)

For BASF India Limited



Authorized Signatory

CONFIRMED AND ACCEPTED
For ASCENDAS PANVEL FTWZ PRIVATE LIMITED



Authorized Representative

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HEMANT KEJRIWAL